

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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JOSÈ LEONARDO,

Plaintiff,

-v-

Index No.

SUMMONS

THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT,

POLICE OFFICER, CHRISTOPHER WALSH,
(Shield 23571), POLICE OFFICER SOLOMITO
(Shield 25805), POLICE OFFICER SALAZAR,
and POLICE OFFICERS "JOHN /JANE DOES",

Defendant(s).

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TO THE ABOVE NAMED DEFENDANTS:

You are hereby SUMMONED TO ANSWER THE COMPLAINT IN THIS ACTION AND SERVE A COPY OF YOUR ANSWER, or, if the Complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's Attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear to answer, judgment will be taken against you by default, for the relief demanded in the Complaint.

Dated: Brooklyn, New York
18 November 2016

Stuart Meltzer & Associates, PC

By: Stuart Meltzer, Esq
26 Court Street, Suite 1813
Ph: 917-698-8784

Defendants' address:

City of New York Corporation Counsel
100 Church Street
New York, New York, 10007

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

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Index No.

JOSÈ LEONARDO,

Plaintiff,

-v-

COMPLAINT

THE CITY OF NEW YORK, THE NEW
YORK CITY POLICE DEPARTMENT,

POLICE OFFICER, CHRISTOPHER WALSH,
(Shield 23571), POLICE OFFICER SOLOMITO
(Shield 25805), POLICE OFFICER SALAZAR,
and POLICE OFFICERS "JOHN / JANE DOES",

Defendant(s).

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JOSÈ LEONARDO ("Plaintiff"), by and through his attorneys, Stuart
Meltzer & Associates, PC, states upon information and belief, the following:

PRELIMINARY STATEMENT

1. This is an action to redress: a) the negligence of Defendants in their holding, detaining and inflicting physical and psychological injury on the Plaintiff and b) in the hiring/retaining of their employees and agents; c) the false imprisonment of Plaintiff; and d) the deprivation of Plaintiff's rights, privileges and immunities protected by the Constitution and Laws of the United States of America and the State of New York, particularly but not limited to the Fourth and Fourteenth Amendment of the

Constitution of the United States as provided by 42 U.S.C. 1983 and 42 U.S.C. 1985;

FACTS AND JURISDICTION

2. Plaintiff is and at all times material has been a resident of New York City, County of Kings, State of New York;
3. Defendants NYPD Officers Christopher Walsh, “John Doe” and “Jane Doe”, Officer Salazar, and Officer Solomito were employed by, or were agents of, the NYPD, and the City of New York and were acting within the scope of their employment or agency;
4. At all times material, all Defendants were acting under color of law and authority as Police Officers, or employees/officials/agents of their respective agencies and The City of New York;
5. This action is brought within one year and ninety days from the date of the occurrence complained of herein;
6. Plaintiff has complied with all conditions precedent applicable to the instant action;
7. The callous acts, omissions and conspiracies alleged herein were engaged in and carried out by the City of New York acting by and through the NYPD and other departments and agencies, and its officials, employees and agents, pursuant to governmental custom, practice, and policy which was so permanent and well settled that it constituted practice of policy which had the force of law;

8. On or about September 19, 2015, Plaintiff was attending a birthday party for himself and his two-year-old son at a park in Brooklyn;
9. At the conclusion of the party, Plaintiff and some friends were packing up chairs to take back to the rental company in the Bronx;
10. While loading the chairs and party supplies into their cars, several police officers rushed onto the scene;
11. The officers told Plaintiff's friend, who was helping load the chairs, to leave;
12. The officers rushed Plaintiff's friend, requesting his I.D. and slamming him into a nearby gate;
13. Plaintiff approached the officers, trying to explain that his friend does not speak English and that Plaintiff could translate the officers' requests to his friend;
14. Instead of allowing the Plaintiff to translate, the officers attacked Plaintiff, slamming him to the ground and handcuffing him in front of his son;
15. Plaintiff spent 24 hours in jail and was forced to appear in criminal court numerous times over the course of eighteen months, losing valuable time from his work as a electronics technician;

FIRST CAUSE OF ACTION: NEGLIGENT HIRING/SUPERVISION/CONTROL

16. Plaintiff restates and realleges all allegations contained herein;

17. Defendant Police Officers, as public officials exercising coercive powers while on duty, owed Plaintiff the duty of reasonable inquiry as to what Plaintiff was trying to communicate to them;
18. Defendants unreasonably assumed, based on Plaintiff's association with the arrested individual, that Plaintiff was a physical threat to the officers;
19. Defendant City of New York (and NYPD) knew or should have known that its employee police officer(s), Christopher Walsh, Officer Salazar, Officer Solomito, and "John / Jane Doe(s)", who arrested, assaulted and detained Plaintiff were incompetent, unprofessional and ill-suited for law enforcement work;
20. Additionally, Defendants failed to reasonably train and/or supervise its employee police officers and knew or should have known that such failure would result in harm to members of the public such as Plaintiff;
21. As a result, Plaintiff was hauled off in cuffs, made to suffer detention, loss of valuable time and income, embarrassment in relation to his son and peers, loss of dignity, extreme annoyance, fear, and physical and psychological injuries;

SECOND CAUSE OF ACTION: FALSE ARREST

22. Plaintiff restates and realleges all allegations contained herein;
23. The Defendants' unlawful detention of Plaintiff was without justification and beyond the boundaries of reasonableness;

24. The Defendant police officers had no probable cause to arrest and detain Plaintiff;

25. The Defendants acted in bad faith and without justification in committing the aforesaid detention and unlawful imprisonment of Plaintiff;

26. Plaintiff had not committed, nor had he attempted to commit, any illegal act at the time of his unlawful arrest and imprisonment;

27. As a result, Plaintiff suffered emotional and psychological damages, extreme annoyance, loss of valuable time and income as a result of the detention and as a result of numerous required appearances at Criminal Court;

THIRD CAUSE OF ACTION: CIVIL RIGHTS VIOLATION UNDER 28 USC

1983

28. Plaintiff restates and realleges all allegations contained herein;

29. The aforementioned false imprisonment, violations of Plaintiff's basic rights under the Constitutions of the United States and the State of New York, has caused Plaintiff to suffer severe emotional and psychological distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to his reputation.

30. As a result of the foregoing, Plaintiff demands judgment against Defendants in a sum of money which exceeds the jurisdictional limits of all courts of lesser jurisdiction;

FOURTH CAUSE OF ACTION: ASSAULT AND BATTERY

31. Plaintiff restates and realleges all allegations contained herein;
32. Defendant's employee police officer(s) / agents including Christopher Walsh, Officer Salazar, Officer Solomito, and/or "John/Jane Doe(s)", handcuffed, pushed, and shoved Plaintiff without justification and without consent of Plaintiff;
33. Such non-consensual touching, accompanied by verbal abuse would offend any reasonable person;
34. As a result, Plaintiff suffered physical and psychological injuries, mental anguish, and loss of valuable time;

FIFTH CAUSE OF ACTION: MALICIOUS PROSECUTION

35. Plaintiff restates and realleges all allegations contained herein;
36. The case against Plaintiff was terminated in favor of Plaintiff on or about 8 January 2016;
37. The Defendants pursued and prolonged an improper prosecution for which they had no probable cause or reasonable basis;
38. The Defendants pursued and prolonged the prosecution for improper purposes;

WHEREFORE, Plaintiff respectfully asks this Court grant judgment in his favor awarding \$500,000 in damages.

Dated: Brooklyn, New York
18 November 2016

Stuart Meltzer & Associates, PC
By: Stuart Meltzer, Esq
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Brooklyn, NY 11212
Ph: 917-698-8784